



Republic of the Philippines
MUNICIPALITY OF PRIETO DIAZ

Prieto Diaz, Sorsogon 4711
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FILE COPY

Office of the Secretary to the Sangguniang Bayan

1st Endorsement
September 10, 2025

SP6C - 09112025 - 290

SANGGUNIANG BAYAN	
LOCAL GOVERNMENT UNIT	
Prieto Diaz, Sorsogon	
RELEASED	
BY:	<u>PINKY E. DESTURA</u>
DATE:	<u>9-11-25</u> TIME: <u>9:56 am.</u>

Respectfully transmitted to **Hon. ROMEO D. DOMASIAN**, Municipal Mayor, the herein attached Resolution No. 160-2025 entitled: **"A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN, PhD, TO ENTER INTO A DATA SHARING AGREEMENT WITH THE DEPARTMENT OF SOCIAL WELFARE AND DEVELOPMENT REGIONAL OFFICE NO. V (DSWD RO V), REPRESENTED BY ITS REGIONAL DIRECTOR, NORMAN S. LAURIO, FOR THE IMPLEMENTATION OF SOLO PARENT MONITORING SYSTEM IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON"** for his information and appropriate action.


BERNADETTE R. ESPEÑA- YAO
Secretary to the Sangguniang Bayan

Cc:

- Ms. Betty Arines
MSWDO

OFFICE OF THE MAYOR	
LGU PRIETO DIAZ, SORSOGON	
RECEIVED	
By:	<u>[Signature]</u>
Date:	<u>9/11/25</u>
Time:	<u>9:10</u>

RECEIVED : OMSWDO

RONESA TERELLE MAIE D. ESTERNON, RSW, MAED - GC
SNO 11
11. SEP. 2025



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
LGU TIN: 000794065
Official Email Add: sbprietodiaz@gmail.com



Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 12TH SANGGUNIAN BAYAN OF PRIETO DIAZ, SORSOGON HELD ON SEPTEMBER 2, 2025 AT OFFICE OF THE MUNICIPAL VICE MAYOR, THIS MUNICIPALITY

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/Presiding Officer
Hon. Ryand D. Diño	Sangguniang Bayan Member
Hon. Vicente B. Bayoca	Sangguniang Bayan Member
Hon. Bienvenido D. Ayo, Jr.	Sangguniang Bayan Member
Hon. Joseph H. Yap, Jr.	Sangguniang Bayan Member
Hon. Alexander D. Destura	Sangguniang Bayan Member
Hon. Juan D. Ebid	Sangguniang Bayan Member
Hon. Lilia D. Oliveres	Sangguniang Bayan Member
Hon. Antonio J. Emano, Jr.	LnB Pres./S. B. Member

ABSENT:

Hon. Jo Madel D. Domalaon	S. B. Member – OB Siargao
Hon. Rene Joseph D. Domasian	SKMF President - on leave

RESOLUTION NO. 160-2024

Introduced by Hon. Ryand Diño

A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO DOMASIAN, PhD, TO ENTER INTO A DATA SHARING AGREEMENT WITH THE DEPARTMENT OF SOCIAL WELFARE AND DEVELOPMENT REGIONAL OFFICE NO. V (DSWD RO V), REPRESENTED BY ITS REGIONAL DIRECTOR, NORMAN S. LAURIO, FOR THE IMPLEMENTATION OF SOLO PARENT MONITORING SYSTEM IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON

WHEREAS, endorsed to this honorable body is the said Data Sharing Agreement with the DSWD, by the Municipal Mayor, Hon. Romeo Domasian;

WHEREAS, as stated in the said agreement, the DSWD FO V has developed a Solo Parent Monitoring System to monitor and collect data on solo parents for program and policy implementation;

WHEREAS, Section 18 of the Expanded Solo Parents Welfare Act (RA 11861) provides that, "*The DSWD, in coordination with the DILG, shall establish and maintain a centralized database of all solo parents who have been issued SPIC or booklets by the*

SPOs and SPDs. To this end, the LGUs shall submit the list of solo parents receiving benefits under this Act to the DSWD on a quarterly basis."

WHEREAS, as per agreement, both parties intend to work together to ensure accurate and timely submission of solo parent data to the DSWD FO V through the use of the system;

WHEREAS, on motion of Hon. Juan Ebid, duly seconded by Hon. Alexander Destura;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to authorize the Municipal Mayor, Hon. Romeo Domasian, PhD, to enter into a Data Sharing Agreement with the Department of Social Welfare and Development Regional Office No. V (DSWD RO V), represented by its Regional Director, Norman S. Laurio, for the implementation of Solo Parent Monitoring System in the municipality of Prieto Diaz, Sorsogon;

FINALLY RESOLVED, to transmit this resolution to Hon. Romeo Domasian, Municipal Mayor, copy furnished Ms. Betty Arines, MSWDO; and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:



Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer

DATA SHARING AGREEMENT

KNOW ALL MEN BY THESE PRESENTS:

This Data Sharing Agreement, hereinafter referred to as DSA or Agreement, made and entered into this ____ day of ____, 2025 at LGU _____ by and between:

The **DEPARTMENT OF SOCIAL WELFARE AND DEVELOPMENT, REGIONAL OFFICE V**, a government agency with office located at **Magnolia Street PBN, Buraguis, Legazpi City, Albay** represented in this act by its Regional Director, **NORMAN S. LAURIO**, hereinafter referred to as the **"DSWD-FO-V"**.

-and-

The **LOCAL GOVERNMENT UNIT OF PRIETO DIAZ**, a local government duly organized and existing pursuant to the laws of the Republic of the Philippines, with office address at LGU Compound, Barangay Perlas, Prieto Diaz, Sorsogon and represented herein by its Local Chief Executive, **HON. ROMEO D. DOMASIAN**, pursuant to **Sanguiang Bayan Resolution No. _____ Series of 2025** (Attached "Annex A") herein referred to as **"LGU Prieto Diaz, Sorsogon"**;

Collectively herein referred to as the **"Parties"**.

WITNESSETH:

WHEREAS, the Philippine Constitution declares that the State shall promote a just and dynamic social order that will ensure the prosperity and independence of the nation and free the people from poverty through policies that provide adequate social services, promote full employment, a rising standard of living, and an improved quality of life for all;

WHEREAS, the DSWD is mandated to assist other national government agencies (NGAs), local Government units (LGUs), non-governmental organizations (NGOs), people's organizations (POs), and members of civil society in the implementation of programs, projects, and services that will alleviate poverty and empower disadvantaged individuals, families, and communities to improve their quality of life.

WHEREAS, pursuant to Section 18 R.A. 8972, as amended R.A. No. 11861, ...otherwise known as "Expanded Solo Parents Welfare Act". the DSWD, in coordination with the DILG, shall establish and maintain a centralized database of all solo parents who have been issued Solo Parents Identification Card (SPIC) or booklets by the Solo Parents Offices (SPOs) and Solo Parents Divisions (SPDs);

WHEREAS, the DSWD FO V has developed a Solo Parent Monitoring System (the "System") to monitor and collect data on solo parents for program and policy implementation;

WHEREAS, the LGU are likewise mandated by Section 18 of the "Expanded Solo Parents Welfare Act" to register and maintain a list of solo parents within their respective jurisdiction who receive benefits under the said Act, and to submit such list to the DSWD on a quarterly basis;

WHEREAS, both Parties desire to collaborate to ensure the accurate and timely submission of solo parent data to the DSWD FO V through the use of the System, subject to the terms and conditions set forth in this Agreement and in accordance with applicable laws, regulations, and guidelines, particularly the Data Privacy Act of 2012 (Republic Act No. 10173);

NOW, THEREFORE, for and in consideration of the foregoing premises, the Parties hereby agree as follows:

Purpose

The purpose of this agreement is to establish the terms and conditions under which the LGU of Prieto Diaz, Sorsogon shall provide the DSWD FO V with a quarterly list of registered solo parents via Solo Parent Monitoring System for data monitoring, reporting, and program purposes, in compliance with the provisions of R.A. 8972, as amended by R.A. 11861.

Definitions of Terms

For the purpose of this Data Sharing Agreement (DSA), **"data protection officer", "data sharing", "data subject", "personal data", "personal information controller", and "processing", shall have the same meaning as in the Data Privacy Act of 2012** (Republic Act No. 10173), and its implementing Rules and Regulations:

- a. *Data Protection Officer (DPO)* refers to the person accountable for ensuring compliance by the Personal information controller (PIC) or Personal information processor (PIP) with the Data Privacy Act, its IRR, related issuances of the National Privacy Commission, and other applicable laws and regulations relating to data privacy and security
- b. *Data sharing* is the disclosure or transfer to a third party of personal data under the control or custody of a personal information controller
- c. *Data subject* refers to an individual whose personal information is processed
- d. *Personal information* refers to any information whether recorded in a material form or not, from which the identity of an individual is apparent or can be reasonably and directly ascertained by the entity holding the information, or when put together with other information would directly and certainly identify an individual
- e. *Personal information controller (PIC)* refers to a person or organization who controls the collection, holding, processing, or use of personal information, including a person or organization who instructs another person or organization to collect, hold, process, use, transfer, or disclose personal information on his/her behalf. The term excludes:

1. A person or organization who performs such functions as instructed by another person or organization; and

2. An individual who collects, holds, processes, or uses personal information in connection with the individual's personal, family, or household affairs

f. Processing refers to any operation or any set of operations performed upon personal information including, but not limited to, the collection, recording, organization, storage, updating or modification, retrieval, consultation, use, consolidation, blocking, erasure or destruction of data.

Obligations of the LGU

The LGU of Prieto Diaz, Sorsogon shall:

a. Act as the personal information controller for all personal data processed by the LGU- Prieto Diaz, Sorsogon and shall assume its duties and accountabilities in accordance to law.

b. Submit a complete and accurate list of registered solo parents within its jurisdiction to the DSWD FO V every quarter via the Solo Parent Monitoring System (System);

c. Process and share personal data with the DSWD FO V in accordance with the Data Privacy Act, DSWD data sharing and privacy policies and guidelines, and the requirements specified in Annex A of this Agreement;

d. Ensure that all data submitted is up-to-date and accurately reflects the information maintained by the LGU of Prieto Diaz, Sorsogon;

e. Ensure that the data shared does not contain any sensitive or confidential information beyond what is necessary for the implementation of the Expanded Solo Parent Welfare Act

f. Respond, within reasonable time, to information requests and complaints from data subjects concerning processing of the personal data by the DSWD FO V to the extent reasonably possible and with information reasonably available to it if the DSWD FO V is unwilling and unable to respond;

g. Comply with the provisions of the Data Privacy Act of 2012, relevant DSWD data sharing and privacy policies, and any other applicable laws, including ensuring that appropriate security measures are in place for the protection of the data during transmission; and

h. Ensure the right of Data Subject to be informed whether their personal data is being or has been processed, including the sharing to DSWD FO V.

Obligations of the DSWD

The DSWD FO V shall:

- a. Act as and have the duties and accountabilities of a personal information controller for all personal data processed by the System;
- b. Have in place appropriate physical, technical and organizational measures to protect the personal data received from the LGU of Prieto Diaz, Sorsogon against accidental or unlawful destruction or accidental loss, alteration, unauthorized disclosure or access, as well as against any other unlawful processing;
- c. Receive and further process and share personal data with the LGU of Prieto Diaz, Sorsogon in accordance with the Data Privacy Act, DSWD data sharing and privacy policies and guidelines, and the requirements specified in Annex A of this Agreement;
- d. Provide LGU of Prieto Diaz, Sorsogon with a password that will be used to access encrypted information of solo parents within its jurisdiction; Provided, that only the LGU Prieto Diaz, Sorsogon through its duly authorized staff will use such password;
- e. Provide the LGU of Prieto Diaz, Sorsogon with access to the Solo Parent Monitoring System, including necessary training, technical support, and updates, to facilitate the effective use of the system;
- f. Not disclose or transfer the personal data to a third party, except those disclosures authorized by law, or provided that any such transfer or disclosure of personal data to be made by the DSWD FO V to a third party personal information controller will be:
 - i. The sole responsibility of the DSWD FO V as a personal information controller, and therefore, will no longer be the accountability or liability of the LGU of Prieto Diaz, Sorsogon;
 - ii. Compliant to the Data Privacy Act, its IRR and other relevant laws, and executed with adequate safeguards in place for the protection of personal data; and
 - iii. Covered by a separate agreement.
- g. Ensure that all data submitted by the LGU of Prieto Diaz, Sorsogon is treated with confidentiality and is only used for the purposes set forth in this Agreement, in accordance with applicable privacy laws, policies, and guidelines;
- h. Provide the LGU of Prieto Diaz, Sorsogon with information necessary for the sharing of personal data, including but not limited to specific data requirements, processes to be applied to the personal data, time frame as to when the said data will be needed, and

4. The Parties agree to implement reasonable technical and organizational measures to protect the personal data against unauthorized access, alteration, disclosure, or destruction. The data shall be stored and transmitted in compliance with industry-standard security protocols.

5. The Parties shall ensure that personal data is retained only for as long as necessary to fulfill the purpose of this Agreement and in compliance with applicable laws and policies.

6. This Agreement shall be effective as of the date of execution by both Parties and shall continue in force until the Revision of the Expanded Solo Parents Welfare Act unless earlier terminated by either Party with three (3) months' notice.

This Agreement may be terminated by either Party in the event of a material breach of its provisions, subject to a reasonable opportunity to remedy such breach.

7. Any disputes arising from the interpretation or implementation of this Agreement shall be resolved through amicable discussions between the Parties. If a resolution is not reached, the Parties may seek mediation through the appropriate government agency or courts.

Representation and Warranties

Each of the Parties represents and warrants to the other that it is duly authorized and empowered to execute, deliver, and perform this DSA and that such action does not conflict with or violate any provision of law, regulation, or policy.

Miscellaneous Provisions

1. This Agreement may be amended or modified only by mutual written consent of both Parties.

2. Neither Party shall be held liable for any delay or failure to perform its obligations under this Agreement due to circumstances beyond its reasonable control, including but not limited to acts of God, war, or other force majeure events.

3. This Agreement shall be governed by and construed in accordance with the laws of the Republic of the Philippines.

Termination of Agreement

This DSA shall automatically be deemed terminated upon the repeal of R.A. 8972, as amended by R.A. No. 11861, by a subsequent legislation, whether express or implied. The parties agree,

however, that the termination of this DSA at any time, in any circumstances and for whatever reason, does not exempt them from the obligations and/or conditions under the clauses as regards the processing of the personal data transferred.

Definition of the Transfer

The details of the transfer and of the personal data are specified in Annex A, which forms an integral part of this DSA. The parties may execute additional annexes to cover additional transfers, which will be submitted to the National Privacy Commission (NPC) where required. Annex A may, in the alternative, be drafted to cover multiple transfers.

IN WITNESS WHEREOF, the Parties hereto have caused this Agreement to be signed in their respective names in _____, Republic of the Philippines, as of the day and year written above:

For the Department of Social
Welfare and Development
(DSWD)

For the Local Government Unit (LGU)
of Prieto Diaz, Sorsogon.

NORMAN S. LAURIO

Regional Director

HON. ROMEO D. DOMASIANI

City/Municipal Mayor

Signed in the Presence of:

(Designated Data Protection
Officer)

“

BETTY G. ARINES

MSWDO

ACKNOWLEDGEMENT

REPUBLIC OF THE PHILIPPINES)

_____)S.S

BEFORE ME, a Notary Public for and in the above jurisdiction, personally appeared the following:

NAME	VERIFIED EVIDENCE OF IDENTITY	DATE/PLACE ISSUED
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NORMAN S. LAURIO

HON. ROMEO D. DOMASIAN

Known to me to be named persons who executed the foregoing instrument and acknowledgement to me that the same is their own free will voluntarily act and deed.

This instrument consists of ten (10) pages and this page wherein this Acknowledgement is written, and is signed by the parties and their instrumental witnesses in every page hereof.

WITNESS MY HAND AND SEAL, this ____ day of _____ 2025 at
_____, Philippines.

NOTARY PUBLIC

Doc. No. ____:

Page No. ____:

Book No. ____:

Series of 2025:

ANNEX A: RESOLUTION NO. _____ S. 2025